

NovaTech Solutions — Warranty and Service Policy

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1. Purpose and Scope

This Warranty and Service Policy defines the service commitments NovaTech Solutions makes to customers regarding platform availability, defect correction, and support responsiveness across all five core products: NovaTech CRM, NovaTech Projects, NovaTech Connect, NovaTech Insights, and NovaTech Helpdesk. This policy applies to all subscription editions (Starter, Professional, and Enterprise) unless superseded by specific terms negotiated in an Enterprise Master Services Agreement (MSA), in which case the MSA terms take precedence.

This policy covers the SaaS-delivered version of NovaTech products. Customers using an on-premises Enterprise deployment are governed by a separate Enterprise Infrastructure Agreement with distinct warranty terms specific to on-premises hosting.

2. Service Warranty Coverage

NovaTech Solutions warrants that, during an active paid subscription term:

- The platform will perform substantially in accordance with its published documentation and feature descriptions.

- Reported defects that materially impair core product functionality will be investigated and addressed according to the severity classifications defined in Section 4.
- Platform availability will meet or exceed the uptime commitment associated with the customer's subscribed edition, as defined in Section 4.1.
- Data submitted to the platform will be stored and processed in accordance with the encryption and security standards described in the Privacy and Security Policy (Document 10).

This warranty applies only to the current, generally available version of each product. Beta features, Early Access Program functionality, and features explicitly labeled as experimental are provided "as is" and are not covered by this warranty.

3. Exclusions from Warranty Coverage

The following are **not** covered under this warranty:

- Issues caused by the customer's own network infrastructure, hardware, or internet service provider.
- Issues arising from unsupported browsers, operating systems, or outdated mobile application versions (see minimum requirements in the Product Catalog, Document 1, Section 9).
- Data loss or corruption resulting from customer misuse, including improper bulk import, unauthorized third-party integration configuration, or intentional deletion.
- Performance degradation caused by exceeding documented edition limits (for example, dashboards exceeding the recommended widget count, or dependency chains exceeding 200 linked tasks).
- Custom code, custom integrations built by the customer using the public API, or third-party Marketplace applications not developed directly by NovaTech Solutions.
- Scheduled maintenance windows communicated in advance per Section 4.3.
- Force majeure events, including but not limited to natural disasters, widespread internet infrastructure failures outside NovaTech's data center operations, and government action.

Note: Marketplace applications built by certified partners are subject to the partner's own support terms, not this NovaTech warranty, though NovaTech reviews all Marketplace listings under its Partner Security Standards prior to publication.

4. Service Level Agreement (SLA)

4.1 Uptime Commitment

Edition	Monthly Uptime Commitment
Starter	99.5%
Professional	99.9%
Enterprise	99.95%

Uptime is calculated monthly as the percentage of total minutes in the calendar month during which the core platform was available, excluding scheduled maintenance windows communicated in accordance with Section 4.3.

4.2 Support Response Time by Severity

Severity	Definition	Starter Response Target	Professional Response Target	Enterprise Response Target
Severity 1 (Critical)	Full outage or complete loss of core functionality affecting all users	8 business hours	4 business hours	1 hour (24/7)
Severity 2 (High)	Major feature unusable, no reasonable workaround, affecting multiple users	1 business day	8 business hours	4 hours
Severity 3 (Medium)	Feature impaired but workaround available, or issue affects a single user	2 business days	1 business day	8 business hours
Severity 4 (Low)	Minor issue, cosmetic defect, or general question	3 business days	2 business days	1 business day

Note: "Business hours" refers to standard support hours (Monday–Friday, 6:00 AM–8:00 PM Central Time) unless the customer has an active 24/7 Premium Support add-on, in which case Severity 1 and Severity 2 issues are covered around the clock.

4.3 Scheduled Maintenance

Scheduled maintenance that may affect platform availability is communicated at least 72 hours in advance via the status page (status.novatechsolutions.com) and in-app notification. Scheduled maintenance windows are excluded from uptime calculations.

NovaTech targets scheduled maintenance during low-traffic windows specific to each hosting region.

5. Service Credit Claims Process

Customers on Professional and Enterprise editions with an active subscription are eligible to claim service credits when actual monthly uptime falls below the committed threshold in Section 4.1.

Monthly Uptime Achieved	Service Credit (% of monthly subscription fee)
Below commitment, but 99.0% or higher	5%
95.0%-98.99%	10%
90.0%-94.99%	20%
Below 90.0%	30%

To submit a service credit claim:

1. Submit a claim through Admin Console > Billing > Service Credit Request, or by emailing billingsupport@novatechsolutions.com, within 30 days of the end of the affected billing month.
2. Include the affected date range and, if available, reference incident numbers from the status page.
3. NovaTech reviews internal uptime monitoring data to confirm the claim.
4. Approved credits are applied to the customer's next invoice as a line-item credit; service credits are not issued as cash refunds.

Warning: Service credits are the customer's sole and exclusive remedy for failure to meet the uptime commitment. Claims must be submitted within the 30-day window; claims submitted after this window are not eligible for review.

6. Support Request Handling

Support requests can be submitted through the in-app Help widget, by email, or by phone (Professional and Enterprise editions). Each request is automatically assigned a severity level based on customer-provided information, which may be adjusted by a support agent upon review if the initial classification does not match the actual impact.

Standard support request lifecycle:

1. **Submission** — Customer submits request with description, affected product, and severity indication.

2. **Triage** — Support agent confirms severity classification and gathers any additional diagnostic information needed.
3. **Investigation** — Agent follows relevant troubleshooting procedures (see Troubleshooting Guide, Document 4) or escalates per the escalation criteria defined there.
4. **Resolution** — Agent implements or confirms a fix, workaround, or configuration change, and communicates resolution to the customer.
5. **Closure** — Ticket is closed after customer confirmation, or automatically after 5 business days of no customer response following a proposed resolution.

Customers may reopen a closed ticket within 14 days if the original issue recurs, without needing to submit a new request.

7. Repair and Correction Policy

When a confirmed platform defect is identified, NovaTech Solutions follows a structured correction process:

- **Critical defects (Severity 1)** are addressed through an emergency patch process, targeting resolution or a documented workaround within the SLA response window defined in Section 4.2.
- **Non-critical defects** are logged, prioritized by engineering based on customer impact and frequency, and typically resolved within a subsequent scheduled release (rolling weekly updates or the quarterly major release cycle described in the Product User Manual, Document 5).
- Customers who report a defect are notified when a fix is deployed to production, referencing the relevant release notes.

Note: NovaTech does not guarantee a specific resolution timeline for non-critical defects, as prioritization depends on overall platform impact, but all confirmed defects are tracked to resolution and are not closed without either a fix or a documented workaround.

8. Replacement and Data Recovery Policy

As a cloud-delivered SaaS platform, NovaTech does not provide physical product replacement. "Replacement" in this context refers to data and configuration recovery following a confirmed platform-side incident.

- NovaTech maintains automated daily backups of all customer data, retained on a rolling 35-day basis.
- In the event of confirmed data loss caused by a platform-side defect (not customer-caused deletion or misconfiguration), NovaTech will restore affected data from the

most recent clean backup at no cost to the customer.

- Customer-initiated data recovery requests (for example, recovering accidentally deleted records not caused by a platform defect) are handled as a best-effort paid service, subject to backup availability within the 35-day retention window, billed at standard professional services rates.
- Enterprise customers may purchase an Extended Backup Retention add-on, extending the backup window up to 180 days.

Tip: For accidental record deletion within a product (not full data loss), most products include a native "Recently Deleted" recovery area retaining deleted records for 30 days, which is faster and free compared to a full backup restoration request.

9. Customer Responsibilities

To maintain warranty and SLA eligibility, customers are responsible for:

- Maintaining supported browser versions, operating systems, and mobile application versions as defined in the Product Catalog.
 - Safeguarding user credentials and promptly reporting suspected unauthorized account access.
 - Configuring integrations and custom automations in accordance with NovaTech documentation.
 - Staying within documented edition limits, or upgrading when sustained usage approaches those limits.
 - Designating at least one active account administrator at all times to manage security and configuration settings.
 - Reviewing and testing major platform updates in a sandbox environment where available (Enterprise CRM) before assuming behavior in production.
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10. NovaTech Responsibilities

NovaTech Solutions commits to:

- Maintaining the uptime levels defined in Section 4.1 for each subscription edition.
- Responding to support requests within the timeframes defined in Section 4.2.
- Providing advance notice of scheduled maintenance and material feature changes.
- Maintaining daily backups and a defined data recovery process.
- Investigating and remediating confirmed security vulnerabilities in accordance with the Incident Response process described in the Privacy and Security Policy (Document 10).
- Providing transparent, timely status communication during any service-impacting incident via status.novatechsolutions.com.

11. Limitation of Liability

Except where prohibited by applicable law, NovaTech Solutions' total liability arising from any warranty or SLA claim under this policy is limited to the service credits described in Section 5, or, where service credits do not apply, to the fees paid by the customer for the affected product during the three months preceding the claim. This policy does not limit liability for gross negligence, willful misconduct, or obligations defined separately under a negotiated Enterprise MSA, which takes precedence over this general policy where terms conflict.

12. Summary

This Warranty and Service Policy defines NovaTech Solutions' commitments regarding platform functionality, uptime, defect correction, data backup, and support responsiveness, scaled by subscription edition. Professional and Enterprise customers are eligible for service credits when uptime commitments are not met, claimable within 30 days of the affected billing period. Customers share responsibility for maintaining supported configurations and safeguarding account access to remain eligible for warranty coverage. This policy should be read alongside the Troubleshooting Guide (Document 4) for issue resolution procedures and the Pricing and Subscription Guide (Document 2) for billing-related remedies such as refunds.

End of Document 6 — Warranty and Service Policy. NovaTech Solutions Confidential Documentation.